

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

June 23, 2008

The Governing Body of the City of Cheyenne met in regular session on this date at 6:00 p.m. in Council Chambers. Present were: MAYOR-Jack R. Spiker; COUNCIL MEMBERS-Mr. Brown, Ms. Case, Mr. Collins, Mr. Laybourn, Mr. Pierson, Dr. Rinne, Mr. Segrave and Mr. Valdez. Absent: Ms. Broyles.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Claudia Angelos, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests, in which event the item will be removed from the Consent Agenda and considered in its normal sequence on the agenda.) Upon request by Mr. Laybourn, Mayor Spiker announced agenda items 22, 23, 24, 25, 26, 29(a)(b)(c)(d)(e)(f)(h), 31(a)(b)(c)(d)(e)(f), and 32(a)(b) would be removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Laybourn voting "no".

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON JUNE 9, 2008. Motion (per consent agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON JUNE 16, 2008. Motion (per consent agenda) carried.

[CA] MINUTES FROM SPECIAL SESSION OF THE GOVERNING BODY ON JUNE 16, 2008. Motion (per consent agenda) carried.

Mr. Segrave moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Mr. Brown moved to divide the question to allow for a separate vote on Ameri-Tech HVAC Services vouchers, seconded by Mr. Pierson. Motion to divide the question carried. Voting "yes" – all members of the governing body present with the exception of Mr. Laybourn voting "no". Mr. Brown declared a conflict of interest (business interest in Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Segrave moved to approve the vouchers payable to Ameri-Tech HVAC Services (\$1,036.80, float valve/copper float; \$85.00, quarterly maintenance billing), seconded by Mr. Pierson. Upon inquiry, Barb Dorr, City Treasurer, advised the work location involving the copper float/valve was the Taco John's Ice & Events Center, and the \$85.00 voucher was a carry-over from the June 16th voucher meeting. Motion to approve Ameri-Tech HVAC Services vouchers carried. Voting "yes" – all members of the governing body present in Council Chambers with the exception of Mr. Laybourn voting "no". Following announcement of the vote, Mr. Brown returned to Council

Chambers. Mr. Collins declared a conflict of interest regarding a voucher payable to his business (Bicycle Station). Upon further inquiry, Ms. Dorr reviewed information available on vouchers payable to the Board of Public Utilities (BOPU) (\$3,184.39), fertilizer for Belvoir Ranch; CPS Interactive, Inc. (\$185.00), emergency telephone monitoring in City parking structure; East High School (\$300), full color ad (“Drive Smart”) in yearbook (police grant). Upon inquiry regarding the voucher payable to East High School and whether the same ad would be placed in Central High School’s year book, Police Chief Bob Fecht reported Central High had not contacted the department with a similar request. Main motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Collins who did not vote.

Mayor Spiker opened four public hearings for the purpose of receiving comments and input to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exists for the following described properties:

The West 60’ of the East 120’ of the South 120’ of Tract 336, Sunnyside Addition, Seventh Filing, Laramie County, WY. Brandon Cammarata, Urban Planning office, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). There being no further comments or input and purpose of the hearing having been met, Mayor Spiker closed the hearing.

The northerly portion of Lot 1, Block 1, inclusive of the 16’ utility easement, Rogers Subdivision, and Lots 3 through 5, and the northerly half of adjacent vacated alley, Block 2, Coulson Addition, Laramie County, WY. Brandon Cammarata, Urban Planning office, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). There being no further comments or input and purpose of the hearing having been met, Mayor Spiker closed the hearing.

Lot 16, Block 1, Downey Addition, Laramie County, WY. Brandon Cammarata, Urban Planning office, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). There being no further comments or input and purpose of the hearing having been met, Mayor Spiker closed the hearing.

Public road and alley right-of-way situated in the NW¼ of Section 27, T.14N., R.66W., of the 6th P.M., Laramie County, WY (located N. of Pershing Blvd., S. of Dell Range Blvd., E. of Grove Dr. and W. of College Dr.). Brandon Cammarata, Urban Planning office, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). Upon inquiry, Mr. Cammarata reviewed the proposed area to be annexed on a map display, and clarified some of the roads have homes adjacent to them and some road work will involve installation of water and sewer lines pursuant to a separate project. There being no further comments or input and purpose of the hearing having been met, Mayor Spiker closed the hearing.

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED SEPTIC WASTE DUMP RATES AND LIQUID COMMERCIAL WASTE RATES AS RECOMMENDED BY THE

BOARD OF PUBLIC UTILITIES, TO BE EFFECTIVE JANUARY 1, 2009.” Reporting for Finance Committee, Mr. Segrave moved to approve on third and final reading, seconded by Mr. Brown. Upon inquiry, Tim Wilson, BOPU Director, provided information pursuant to discussion held at the Board’s budget meeting involving the indexes that are available to review “bench marks” in ascertaining rate increases relative to the cost of providing services. He advised the Consumer Price Index was used and the proposed rates reflect a 4.1% increase. Motion carried. Voting “yes” – all members of the governing body present. (#3809)

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED ADMINISTRATIVE FEES, SERVICE CHARGES, AND PENALTIES AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES, TO BE EFFECTIVE JANUARY 1, 2009.” Mr. Segrave moved to approve on third and final reading, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present. (#3810)

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED TAP FEES, SYSTEM DEVELOPMENT FEES, PUMP STATION FEES, AND OTHER RELATED FEES RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES, TO BE EFFECTIVE JANUARY 1, 2009”. Mr. Segrave moved to approve on third and final reading, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present. (#3811)

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED SEWER RATES, AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES, TO BE EFFECTIVE JANUARY 1, 2009.” Mr. Segrave moved to approve on third and final reading, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present. (#3812)

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED WATER RATES, AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES, TO BE EFFECTIVE JANUARY 1, 2009.” Mr. Segrave moved to approve on third and final reading, seconded by Mr. Brown. Upon inquiry, Tim Wilson, BOPU Director, advised the proposed rate increase would reflect an estimated \$2.72/month increase for the average residential user (based on approximately 10,000 gallons of water used per month). Motion carried. Voting “yes” – all members of the governing body present. (#3813)

“AN ORDINANCE AMENDING ORDINANCE NO. 3763 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR NON-UNIFORMED EMPLOYEES OF THE CITY OF CHEYENNE.” Mr. Segrave moved to approve on third and final reading, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present. (#3814)

“AN ORDINANCE AMENDING ORDINANCE NO. 3762 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR SWORN OFFICERS OF THE CHEYENNE POLICE DEPARTMENT.” Mr. Segrave moved to approve on third and final reading, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body present. (#3815)

“AN ORDINANCE AMENDING VARIOUS SECTIONS OF CHAPTER 8.40, FOOD

AND FOOD SERVICE ESTABLISHMENTS, OF TITLE 8, HEALTH AND SAFETY, OF THE CHEYENNE CITY CODE PERTAINING TO THE ADOPTION OF THE WYOMING FOOD SAFETY RULE 2006 EDITION, AS AMENDED, ALSO KNOWN AS THE CHEYENNE-LARAMIE COUNTY FOOD RULE, INCLUDING LOCAL AMENDMENTS.” Reporting for Public Services Committee, Mr. Pierson moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#3816)

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS TRACTS 2 AND 3, SKYLINE TRACTS; SYCAMORE RD. AND SKYLINE DR. ADJACENT TO SAID TRACTS 2 AND 3, A SUBDIVISION OF SECTION 18, T.14N., R.66W. OF THE 6TH P.M. LARAMIE COUNTY, WYOMING (LOCATED N. OF AND ADJACENT TO STOREY BLVD., E. AND W. OF SYCAMORE RD.).” Mr. Pierson moved to approve on second reading, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present.

“A RESOLUTION REQUIRING THE MAYOR TO DIRECT PARKS DIVISION TO RECLAIM AND REVEGETATE THE AREA OF LIONS PARK DISTURBED BY THE RECONSTRUCTION OF CENTRAL AVENUE.” Mr. Segrave reported there was no recommendation on the item from Finance Committee. Mr. Laybourn moved to adopt, seconded by Ms. Case. During comments and upon inquiry, Todd Feezer, Parks and Recreation Dept. Assistant Director, advised the project is not included in the annual Parks and Recreation Dept. priority list developed by the department director, and that a funding source has not been identified. Comments continued and included the following topics: Site as a community gateway; departmental priorities; estimated cost of \$44,200.00 for the project; other “bare” areas in community parks and along the greenway; suggested use of unexpended department or City Council Ward contingency funds, and maintenance issues. Upon inquiry, Barb Dorr, City Treasurer, reviewed the current Parks and Recreation Dept. fiscal year budget and expenditures, explaining that the total amount of expenditures is unknown as the budget year has not ended. Upon inquiry regarding maintenance of Parks grounds, Mr. Feezer stated some areas of Lions Park are meant to be “dry land” areas; clarified the site in question is not irrigated, and explained if a funding source is identified the revegetation efforts would include soil amendments, seeding and a temporary irrigation (piping) system. Comments were made regarding maintenance of vegetation currently adjacent to the area, cleanliness of parks, and graffiti and beautification issues. Motion failed. Voting “yes” – Ms. Case, Mr. Laybourn, Dr. Rinne and Mr. Valdez. Voting “no” – Mr. Brown, Mr. Collins, Mr. Pierson, Mr. Segrave and Mayor Spiker.

“A RESOLUTION AUTHORIZING THE MAYOR AND CITY CLERK TO SIGN A FINAL PLAT FOR ROSSMAN ELEMENTARY SCHOOL, A REPLAT OF A PORTION OF INTERIOR HEIGHTS ADDITION, 2ND FILING, SITUATED IN THE SE¼ OF SECTION 7, T.13N., R.66W., 6TH P.M., CHEYENNE, WYOMING (LOCATED AT THE NW CORNER OF THE INTERSECTION OF WALTERSCHEID BLVD. AND W. COLLEGE DR.).” Mr. Pierson moved to adopt with staff recommendations #1 and 2, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present. (#5044)

“A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS A TRACT OF LAND SITUATED IN A PORTION OF THE NW¼ OF SECTION 8, AND A PORTION OF WALTERSCHEID BLVD. SITUATED IN A PORTION OF THE NE¼ OF SECTION 7, AND A PORTION OF THE NW¼ OF SECTION 8, T.13N., R.66W., OF THE 6TH P.M. AND A PORTION OF W. JEFFERSON RD. LINE BETWEEN THE WESTERLY RIGHT-OF-WAY LINE OF THE S. GREELEY HWY. AND THE WEST LINE OF TRACT 16, ALLISON TRACTS, LARAMIE COUNTY, WY. (LOCATED S. OF AND ADJACENT TO FOX FARM RD. AND E. OF AND ADJACENT TO WALTERSCHEID BLVD.).” Mr. Pierson moved to adopt, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present. (#5045)

“A RESOLUTION SUPPORTING THE CHEYENNE TRANSIT PROGRAM’S BOARDING TRANSITION TO SIGNED “DESIGNATED BOARDING AREAS,” AMENDING THE FIXED ROUTES OF THE CHEYENNE TRANSIT BUSES AND RECOGNIZING THE FIVE-YEAR TRANSPORTATION DEVELOPMENT PLAN (DOCUMENT TITLED CTP TRANSIT DEVELOPMENT PLAN AND COORDINATION STUDY) AS A FLEXIBLE PLANNING TOOL.” Mr. Segrave moved to adopt, seconded by Mr. Valdez. Concern was expressed regarding the proposed route change in the Buffalo Ridge area. Motion carried. Voting “yes” – all members of the governing body present with the exception of Dr. Rinne voting “no”. (#5046)

“A RESOLUTION AUTHORIZING THE FILING OF AN APPLICATION WITH THE FEDERAL TRANSIT ADMINISTRATION, AN OPERATING ADMINISTRATION OF THE UNITED STATES DEPARTMENT OF TRANSPORTATION, FOR FEDERAL TRANSPORTATION ASSISTANCE AUTHORIZED BY TITLE 49, UNITED STATES CODE, SECTION 5307.” Mr. Segrave moved to adopt, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present. (#5047)

“A RESOLUTION AUTHORIZING SUBMISSION OF AN APPLICATION TO THE WYOMING DEPARTMENT OF TRANSPORTATION FOR A WYOMING RURAL PUBLIC TRANSPORTATION PROGRAM GRANT, FOR THE PURPOSE OF ASSISTING IN PROVIDING THE LOCAL MATCH FOR OPERATING FUNDS FOR THE CITY OF CHEYENNE FOR ITS TRANSIT PROGRAM, AS AUTHORIZED BY 49 U.S.C. §5311.” Mr. Segrave moved to adopt, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present. (#5048)

“A RESOLUTION REAPPROPRIATING THE FISCAL YEAR 2008 BUDGET OF THE CITY OF CHEYENNE ACCORDING TO THE PROVISIONS OF W.S. 16-4-112 and 16-4-113.” Mr. Segrave moved to adopt, seconded by Mr. Brown. Upon request, City Treasurer Barb Dorr provided information on the items contained in the reappropriation and stated the amount of total reserves is \$8,775,058 with \$6,085,709 in usable reserves. Motion carried. Voting “yes” – all members of the governing body present. (#5049)

“RESOLUTION - APPROVAL BY THE CITY OF CHEYENNE, WYOMING, OF THE ISSUANCE BY LARAMIE COUNTY, WYOMING, OF A FIRST MORTGAGE REVENUE BOND (PEAK WELLNESS CENTER, INC., PROJECT), IN A PRINCIPAL AMOUNT NOT TO EXCEED \$4,150,000.00, THE PROCEEDS OF WHICH WILL BE USED TO REFINANCE AN OUTSTANDING CONSTRUCTION LOAN RELATING TO THE REMODELING AND FURNISHING OF A FACILITY LOCATED AT 510 W 29TH ST., CHEYENNE, WY., FOR USE AS A CLINIC TO HOUSE THE YOUTH SERVICES DIVISION AND ADMINISTRATIVE OFFICES FOR THE LARAMIE COUNTY PEAK WELLNESS CENTER IN CHEYENNE, WY., A WYOMING NON-PROFIT ORGANIZATION.” Barbara Bonds, Freudenthal and Bonds PC (law firm), advised that appropriate hearings have been held by both the City and County and the County Commissioners have approved their resolution authorizing bond issuance, and clarified the City’s resolution is a formality (approval required under IRS Code as both the City and County have jurisdiction over the site) and that there will be no City legal financial obligation. Steve Miller, resident in the project vicinity, spoke in favor of the project. Mr. Segrave moved to adopt in an amount not to exceed \$4,150,000.00, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present. (#5050)

[CA] “A RESOLUTION AUTHORIZING SUBMISSION OF AN APPLICATION TO THE U.S. BUREAU OF JUSTICE ASSISTANCE FOR THE EDWARD BYRNE MEMORIAL GRANT PROGRAM TO BE USED TO PURCHASE DIGITAL CAMERAS AND EQUIPMENT FOR THE CHEYENNE POLICE DEPARTMENT” -- referred to Finance Committee.

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

City Preliminary Plat for North Cheyenne Community Park, Second Filing, being a replat of North Cheyenne Community Park, Cheyenne, WY (Located N. of and adjacent to Storey Blvd., E. of and adjacent to Chief Washakie Ave.). Mr. Pierson moved to acknowledge receipt with staff recommendation #1, seconded by Mr. Segrave. Upon inquiry, Brandon Cammarata, Urban Planning office, expressed his belief that either the Mayor, or his designee, could sign the (final) plat with Mayor Spiker indicating that Ken Lewis, City Engineer, would be the authorized designee. Upon inquiry, Mr. Lewis stated there is no detention pond on the site but there is a drainage channel in the area. Concern was expressed with storm drainage flow patterns affecting other area properties. Motion carried. Voting “yes” – all members of the governing body present.

LEASES/CONTRACTS/LEGAL:

Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center, for the lease of a transit bus. Mr. Segrave moved to approve, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present. (#5262)

Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center, to provide cooperative transit services. Mr. Segrave moved to approve in an amount not to exceed \$85,554.70, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present. (#5263)

Agreement between the City of Cheyenne and the Cheyenne Animal Shelter, for animal control services. Reporting for Finance Committee, Mr. Segrave moved to approve in an amount

not to exceed \$248,766.00, seconded by Mr. Brown. Comments were made on enforcement concerns; dogs running at large; Animal Shelter board membership composition; funding assistance; allowing time for improvement in operations under the new Shelter director, and contracting of services through the Shelter as a private provider. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case, Mr. Laybourn and Mr. Segrave voting “no”. (#5264)

Agreement between the City of Cheyenne and the Cheyenne Animal Shelter, for animal shelter services. Mr. Segrave moved to approve in an amount not to exceed \$319,192.00, seconded by Mr. Brown. Comments were made regarding contractual arrangements with the Shelter, personnel issues and improvements that have occurred under the new director. Motion carried. Voting “yes” – all members of the governing body present. (#5265)

Agreement between the City of Cheyenne and NextMedia Outdoor, Inc., for the purchase of advertising space on CTP buses. Mr. Segrave moved to approve, seconded by Mr. Brown. Upon inquiry, Joe Dougherty, Transit Director, advised there is another separate contract with NextMedia for advertising upon the right-of-way, which includes bus benches, shelters and stops. City Treasurer Barb Dorr provided information on advertising revenue received for the current fiscal year and Mr. Dougherty discussed terms of the agreement and revenue amounts. Mr. Dougherty further advised that 2 responses to the RFP (Request For Proposal) were received, and provided information on contract provisions involving the type of advertising that is not allowed. Motion carried. Voting “yes” – all members of the governing body present with Mr. Laybourn voting “no”. (#5266)

Contract between the City of Cheyenne and Laramie County for Municipal Court Security Services. Mr. Segrave moved to approve in an amount not to exceed \$3,000.00, seconded by Ms. Case. Motion carried. Voting “yes” – all members of the governing body present. (#5267)

Agreement between the City of Cheyenne and Cheyenne Housing Authority, Peak Wellness Center, Inc., and Peak Wellness Center, Inc., Alcohol Receiving Center, for human services in the community. Mr. Segrave moved to approve the agreement with Cheyenne Housing Authority in an amount not to exceed \$47,355.00 and with Peak Wellness Center, Inc., Alcohol Receiving Center an amount not to exceed \$84,955.00, seconded by Mr. Brown. Mr. Segrave reported the agreement with Peak Wellness Center Inc. was discovered to be a duplication of a 2007 agreement and was, therefore, being withdrawn from the agenda. Motion carried. Voting “yes” – all members of the governing body present. (#5268, #5269)

Agreement between the City of Cheyenne, Youth Alternatives and Laramie County, for juvenile court staffing and pretrial services. Mr. Segrave moved to approve, seconded by Mr. Valdez. Upon inquiry, Ronn Jeffrey, Municipal Court Juvenile Judge, provided information on the increase in volume of juvenile cases, and advised he could provide a written report to City Council regarding the increase. Motion carried. Voting “yes” – all members of the governing body present. (#5270)

Consideration of FAA Grant Agreement (Project #3-56-0005-39) between the City of Cheyenne, Laramie County, WY, Cheyenne Regional Airport Board and the Federal Aviation Administration in an amount not to exceed \$7,073,675.00, for rehabilitation of Runway 13/31 at the Cheyenne Regional Airport -- referred to Finance Committee. Mr. Segrave advised due to the timeliness of the item to receive funds from the FAA, the item was reviewed at a special meeting of the Finance Committee and provisions of Title 2 of City Code had been met. Mr. Segrave moved to approve, seconded by Mr. Brown. John Fafoutakis questioned whether the runway would be concrete or asphalt, and commented on his concerns with asphalt. Dave Haring, Airport Manager, clarified the rehabilitation of the runway, which is a secondary runway not the primary runway, will involve asphalt paving per FAA specifications. He advised discussions were held with FAA on utilizing concrete vs. asphalt and associated costs; provided information on FAA bid construction specifications and project costs (95% covered by grant), and explained that smaller general aviation aircraft are the types that utilize Runway 13/31. Upon inquiry regarding compliance with Title 2 of City Code, City Clerk Carol Intlekofer provided information pursuant to Title 2 involving agenda items of this type requiring review and recommendation by one of the City Council's standing committees prior to final approval. Following a 5 minute recess, Mayor Spiker reconvened the meeting at 7:50 p.m. Upon request, Ms. Intlekofer read into the record City Code Chapter 2.04, Section 2.04.160 B. pertaining to referral of agenda items to a City Council standing committee, stating the types of agenda items not referred to a standing committee include appointments, reappointments and announcements. Mayor Spiker reviewed the usual agenda item committee referral process vs. the process followed, as approved by the Council President and Finance Committee Chair, for this item involving Finance Committee's review and recommendation of the item at a special meeting (as publicized) to meet City Code and the FAA time sensitive deadline for grant acceptance to enable funding for the Airport. He indicated the County Commissioners and the Airport Board also held special meetings to provide agreement approval as required. Upon inquiry, Mr. Haring explained the unexpected change in the deadline to accept the grant relative to the FAA's implementation of a "mini" fiscal year and status of the funding bill in Washington; advised the rehabilitation project has been on the Airport's capital improvement program for many years, and reviewed the allowable time frame for submittal of the grant agreement. He explained due to FAA time frames, the request is to approve the entire grant amount of \$7,073,675, not just the first grant agreement amount of \$1,073,675; and advised grant funding may potentially be jeopardized if the agreement is not approved by the time frame (no later than June 24) as the FAA will not commit to retaining the funding for future grant cycle (application) requests. Discussion followed and included further information provided by Mr. Haring on the following topics: Airport's priority project list, "boiler plate" language and other provisions contained in FAA grant agreements, grant funding for airport development to rehabilitate the secondary runway, verification that the item had been submitted for the Council's meeting agenda in a timely manner, which was prior to recent FAA notification of the changed deadline, and essential use of the runway as a secondary runway. Discussion topics also included runway safety, use and importance of the secondary runway, FAA grant agreement provisions, and agenda item and standing committee procedures. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Laybourn voting "no". (#5271)

[CA] Contract between the City of Cheyenne, Youth Alternatives, and the State of Wyoming, Department of Family Services, Division of Juvenile Services for diversion and transitional services -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Recreation Division, and Josh Cossitt for professional tennis services -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Tina Henderson for crime victim assistance services -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Brenda Johnson for crime victim assistance services -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Carole Anderson-Kincaid for crime victim assistance services -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

Contract Modification No. 1 to Contract No. 5244 between the City of Cheyenne and JTL Group, Inc. d/b/a Knife River for median paving on Missile Drive (2003-2006 1% Sales Tax). Mr. Segrave reported there was no recommendation on the item from Finance Committee. Mr. Collins moved to approve, seconded by Mr. Pierson. Discussion followed on information provided and discussed at Finance Committee; proposed cost (estimated \$26,000.00) and scope of the project, median damage due to train derailment years ago, asphalt vs. concrete median, median uniformity in appearance, Missile Dr. serving as a community “gateway”, and deteriorating median conditions. Upon inquiry, Jeff Fanning, Engineering Services Director, provided information concerning work that would be done under the modification, stating work would provide median paving around the Burlington-Northern bridge area, removal of debris and replacement of concrete median paving around the bridge by filling in gaps between the concrete. He stated the majority of the median damage had occurred when a train derailed at the site several years ago. Discussion followed on area aesthetics, 5th penny (1% sales tax) money as the project’s funding source, community entrance, recent approval and aspects of the Missile Dr. overlay paving project, and continuing median deterioration over time. Mr. Fanning advised the original scope of the Missile Dr. overlay project provides for an asphalt overlay on drive lanes and shoulders, and for asphalt curbing in areas where concrete curbing was deteriorating, and did not include any median paving. Comments were made on continuing the original project with the additional modification work, uniformity in appearance, and materials being utilized. Mr. Fanning clarified the modification involves concrete median paving; the curbing will remain asphalt. Motion carried. Voting “yes” – Ms. Case, Mr. Collins, Mr. Laybourn, Mr. Pierson, Dr. Rinne, Mr. Valdez and Mayor Spiker. Voting “no” – Mr. Brown and Mr. Segrave. (#5244)

[CA] Contract Modification No. 3 to Contract No. 4607 between the City of Cheyenne, Sanitation Department, and A-1 Organics to provide resources and services for the public composting facility -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 4937 between the City of Cheyenne, Sanitation Department, and Clean Harbors for hazardous waste disposal services -- referred to Finance Committee.

CONSIDERATION OF BIDS:

Consideration of Bid #M-27-08 for a contract between the City of Cheyenne and JTL Group, Inc. d/b/a Knife River, for the fiscal year 2008 intersection repair project (2007-2010 1% Sales Tax). Mr. Segrave moved to accept the bid submitted by JTL Group, Inc. d/b/a Knife River, Cheyenne, in an amount not to exceed \$335,159.00, seconded by Mr. Valdez. Upon inquiry, Jeff Fanning, Engineering Services Director, advised repairs would be concrete and some small areas of asphalt patching may be required. Motion carried. Voting “yes” – all members of the governing body present. (#5272)

Consideration of Bid #M-32-08 for a contract between the City of Cheyenne and Horton Rainbow Enterprises Construction, for the Cheyenne Youth Activity and Community Center Demolition and Abatement Package Project (Grants and 1% Specific Purpose Sales & Use Tax). Mr. Segrave moved to accept the bid submitted by Horton Rainbow Enterprises Construction, Cheyenne, in an amount not to exceed \$136,280.00, seconded by Mr. Valdez. Upon inquiry, Todd Feezer, Parks and Recreation Dept. Assistant Director, advised the work site is the former Kiwanis Building located at 1317 Parsley and includes asbestos abatement and demolition work (east portion of the building); explained the scope of work vs. project cost estimates, and clarified only one bidder submitted a bid. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”. (#5273)

Consideration of Bid #M-33-08 for a contract between the City of Cheyenne and S&S Builders, LLC, for the utility vehicle wash facility for the Street & Alley Shop at 110 Cleveland Place (2003-2006 1% Sales Tax). Mr. Segrave moved to accept the bid submitted by S&S Builders, LLC, Cheyenne, in an amount not to exceed \$393,125.00, seconded by Mr. Brown. Motion carried. Voting “yes” - all members of the governing body present. (#5274)

Consideration of Bid #R-26-08 for one remanufactured lazer tag system from Interspher International, Inc. for the City of Cheyenne Taco John’s Event Center (2007-2010 1% Sales Tax & Taco John’s Ice and Events Center funds). Mr. Segrave moved to accept the bid submitted by Interspher International, Inc., Des Moines, IA, in an amount not to exceed \$57,280.00, seconded by Mr. Valdez. Upon inquiry, Delos Searle, Recreation Director, provided information on the current vs. remanufactured system, warranty provisions and price difference between a new vs. remanufactured system. Upon inquiry, Barb Dorr, City Treasurer, verified 5th penny (1% sales tax) money is allocated to the Parks and Recreation Dept., and Mr. Searle provided information on revenue received from operations at the Events Center. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”.

Consideration of Bid #R-34-08 for 4 new medium/heavy duty, body on chassis transit buses from Intermountain Coach for the City of Cheyenne, Transit Division, which includes the mobile digital video recorders (FTA Transit Development Grant). Mr. Segrave moved to accept the bid submitted by Intermountain Coach, Colorado Springs, CO, in an amount not to exceed \$300,760.00, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present.

Consideration of Bid #R-35-08 for furnishing 95 1½ cubic yard steel refuse containers from Sani-Pak Environmental for the Sanitation Department. Mr. Segrave moved to accept the bid submitted by Sani-Pak Environmental, Norfolk, NE, in an amount not to exceed \$31,181.85, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Consideration of Bid #M-22-08 for a contract between the City of Cheyenne and Reiman Corp., for the Norris Viaduct Replacement Project (1% Specific Purpose Sales & Use Tax and Federal Grant funds) -- referred to Finance Committee.

[CA] Consideration of Bid #M-34-08 for a contract between the City of Cheyenne and STC Construction Co., Inc., for the FY 2008 Milling and Utility Adjustments Project (2003-2006 1% Sales Tax) -- referred to Finance Committee.

APPOINTMENTS:

Appointments of Larry Atwell and Janet Cowley to the Cheyenne-Laramie County Economic Development Joint Powers Board, Marty Crowe, to the Contractor Licensing Board, and Marty Griffith to the Greenway Advisory Committee. Mr. Collins moved to approve, seconded by Mr. Segrave. Mayor Spiker stated as the appointments and reappointments (next agenda item) are Mayoral appointments, he would not be voting. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Spiker who did not vote.

Reappointments of Jo Butler, Jay Guerin, Dick Krahenbuhl, Bebe Molway, Bradley Oberg, Carol Matteson-Pascal, Liberty Blain, Doyle Travis, Tom DeHoff, and Abby Yenco to the Greenway Advisory Committee. Mr. Collins moved to approve, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Spiker who did not vote (Mayoral appointments).

ANNOUNCEMENTS/REPORTS/MOTIONS:

Announcement was made of a Public Hearing to be held July 14, 2008 at 6:00 p.m. in City Council Chambers to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exists for the property described as the W½ of Tract 10, Airport Valley Tracts, Laramie County, WY (aka 5905 Crow Road).

OTHER CITY BUSINESS:

John Fafoutakis expressed concerns with graffiti “tagging” and encouraged efforts by law enforcement to curtail gang activity in the community.

Mayor Spiker announced City employee Norm Soden would be retiring after 25 years of service and expressed appreciation to Mr. Soden for his commitment to the City.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:40 p.m.

Submitted by,

Carol A. Intlekofer, CMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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